FREELANCER–CLIENT SERVICE AGREEMENT

Sample template • Illustrative terms • India-oriented example

IMPORTANT — SAMPLE ONLY
This is a general sample for drafting and discussion, not legal advice. It is not tailored to a specific transaction and may not be enforceable as written. Replace all bracketed fields, check applicable law and tax requirements, and have an Indian lawyer review it before signing.

1. PARTIES AND EFFECTIVE DATE

This Service Agreement ("Agreement") is entered into on **[Date]** ("Effective Date") by and between:

Client: [Full legal name / business name], of [address], email: [email] ("Client"); and
Freelancer: [Full legal name / business name], of [address], email: [email] ("Freelancer").
Each may be referred to as a "Party" and together as the "Parties."

2. SCOPE OF WORK AND DELIVERABLES

The Freelancer will provide the following services: **[describe services clearly]**. Deliverables, formats, milestones, dependencies, and acceptance criteria are: **[list each item and due date]**. Work outside this scope requires written approval and may incur additional fees. The Client will provide accurate information, access, feedback, and approvals reasonably needed to perform the work.

3. FEES, INVOICES, AND PAYMENT

The total project fee is ■**[amount]** [plus applicable taxes, if any]. Unless the Parties agree otherwise in writing, payment will be made as follows:

Milestone	Amount / share	Due
Booking / advance	[e.g., 30%]	Before work begins
Progress milestone	[e.g., 40%]	[date / approval]
Final payment	[e.g., 30%]	Before release of final files

The Freelancer may issue invoices at the milestones above. The Client must pay each undisputed invoice within **[7/14] calendar days** of receipt. Any withholding or deduction must be legally required and supported by relevant documentation. Applicable GST or other taxes will be handled as required by law.

4. LATE PAYMENT AND WORK PAUSE

If payment is overdue, the Freelancer will send written notice and allow **[5] calendar days** to cure the delay. If payment remains unpaid, the Freelancer may pause work and revise delivery dates by the length of the delay plus reasonable restart time. Any late fee or interest must be expressly completed here and comply with applicable law: **[e.g., __% per month, if lawful, or "no late fee"]**. The Freelancer may withhold final deliverables until all undisputed amounts due have been paid. The Parties should avoid disproportionate or unlawful penalties.

5. CLIENT REVIEW, REVISIONS, AND ACCEPTANCE

The Client will review each deliverable within **[5] business days** and either accept it or provide one consolidated list of material issues against the agreed scope. The fee includes **[number]** rounds of revisions. New features, changed requirements, or revisions beyond this allowance are additional work and require written agreement on cost and timing. Silence alone does not automatically waive defects unless the Parties expressly agree to that process in writing.

6. RELIABILITY, COMMUNICATION, AND DEPENDENCIES

The Freelancer will perform the services with reasonable professional skill and care, communicate material risks promptly, and make reasonable efforts to meet agreed milestones. Unless otherwise stated, estimated dates depend on timely Client feedback, access, content, and payments. The Freelancer does not guarantee specific commercial results, uptime, or outcomes unless expressly written in the scope. Neither Party guarantees uninterrupted communication or performance where prevented by events outside reasonable control.

7. CHANGE REQUESTS

A change to scope, timeline, deliverables, or fees is effective only when both Parties approve it in writing (including email). The Freelancer will explain any expected impact on price and schedule before starting changed work.

8. INTELLECTUAL PROPERTY AND PORTFOLIO

Upon full payment of all amounts due, ownership of the specifically commissioned final deliverables will transfer to the Client to the extent permitted by law and as agreed here: **[describe ownership/licence]**. Until full payment, the Freelancer retains rights in unpaid deliverables. The Freelancer retains ownership of pre-existing tools, templates, know-how, and reusable components, granting the Client a licence to any such material incorporated into the deliverables as needed for their intended use. Third-party assets remain subject to their own licences. Portfolio use: **[permitted after public launch / only with written consent / not permitted]**.

9. CONFIDENTIALITY AND DATA

Each Party will use the other Party's non-public business, technical, personal, or financial information only for this engagement, protect it using reasonable care, and not disclose it except to people who need it and are bound by confidentiality or where law requires. These duties do not cover information already public through no breach, already lawfully known, independently developed, or lawfully received from another source. On termination, each Party will return or delete confidential information on reasonable request, subject to legal retention duties.

10. WARRANTIES, LIABILITY, AND THIRD-PARTY SERVICES

Each Party confirms it has authority to enter this Agreement. The Freelancer will correct, within a reasonable period, material defects in deliverables that fail to meet the agreed written specifications and are reported during **[__ days]** after delivery. Except as expressly stated and to the extent permitted by law, implied warranties are excluded. Neither Party will be liable for indirect or consequential loss to the extent permitted by law. The aggregate liability cap, if appropriate and lawful, is **[fees paid/payable under this Agreement]**; this cap does not apply where prohibited by law or to liabilities that cannot lawfully be limited. Third-party platforms, APIs, hosting, and software are subject to their own terms and availability.

11. TERM, RENEWAL, AND TERMINATION

This Agreement starts on the Effective Date and continues until the services are completed, unless ended earlier under this clause. For ongoing services, the initial term is **[e.g., one month]**. Renewal: **[choose one]** (a) renews month-to-month unless either Party gives **[15] days'** written notice before the end of the current term; or (b) renews only when both Parties confirm in writing. Either Party may terminate for material breach if the breach is not remedied within **[10] days** after written notice. Either Party may terminate for convenience on **[15] days'** written notice. On termination, the Client will pay for work performed and approved expenses incurred up to the termination date; any advance refund or cancellation charge must be calculated as stated here: **[insert fair, lawful method]**. Clauses intended to survive termination will continue, including payment obligations, confidentiality, IP provisions, liability, and dispute resolution.

12. FORCE MAJEURE

Neither Party is responsible for a delay caused by an event beyond its reasonable control, provided it promptly informs the other Party and takes reasonable steps to reduce the impact. If the event continues for more than **[30] days**, either Party may terminate the affected services by written notice.

13. GOVERNING LAW, JURISDICTION, AND DISPUTES

The Parties will first attempt in good faith to resolve a dispute through written discussion within **[15] days** of notice of the dispute. If unresolved, the Parties may pursue mediation or other agreed dispute resolution. This Agreement is governed by the laws of **India**, subject to applicable law. Subject to mandatory law and any valid arbitration agreement, the courts at **[City, State]** will have jurisdiction. If arbitration is chosen, insert a separate, carefully reviewed clause covering seat, venue, rules, number of arbitrators, language, and allocation of costs; do not leave this clause ambiguous.

14. NOTICES AND GENERAL TERMS

Notices under this Agreement must be sent to the email and postal addresses stated above, or to updated details notified in writing. This Agreement and its approved written change orders form the entire agreement and replace prior discussions on the same subject. If a provision is held unenforceable, the remaining provisions continue to the extent lawful. Neither Party may assign this Agreement without the other Party's written consent, except as permitted by applicable law. Electronic signatures and counterparts may be used to the extent legally recognised.

15. SIGNATURES

By signing below, each Party confirms that they have read, understood, and agreed to the terms of this Agreement and had the opportunity to seek independent advice.

CLIENT	FREELANCER
Name: _____	Name: _____
Signature: _____	Signature: _____
Date: _____	Date: _____
Witness (if used): _____	Witness (if used): _____

Before signing: fill every bracketed field; select one renewal option; specify payment milestones, revision limits, IP ownership, liability limits, late-payment terms, and the exact court jurisdiction; attach a detailed scope of work; check tax and stamp-duty requirements; and obtain local legal review.